

24STCV21891 24STCV21891

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Case Number: 24STCV21891 Hearing Date: September 24, 2026 Dept: 414

24STCV21891 Jenny Song v. Kevin Song, et
al.

Thursday,
September 24, 2026

[TENTATIVE]

ORDER GRANTING MOTION OF U.S. BANK, NATIONAL ASSOCIATION, FOR (1) OSC RE
CONTEMPT AGAINST KEVIN SONG, (2) ISSUANCE OF A BENCH WARRANT AGAINST KEVIN
SONG, (3) ORDER TO COMPEL COMPLIANCE WITH ORDER AND DEPOSITION SUBPOENA, AND
(4) FOR SANCTIONS (0326)

I.
BACKGROUND

The second
amended complaint arises from a dispute over the validity of a deed of trust recorded
against real property located at 606-608 N. Fuller Avenue in Los Angeles, alleged
to be owned by Plaintiff. Plaintiff alleges that her estranged father, Kevin
Song, ("Mr. Song") used the property as security for a loan obtained from Velocity
Commercial Capital LLC ("Velocity"). Mr. Song allegedly incorporated a company with
the same name as Plaintiff's previously dissolved company, Lioness Investment,
Inc. Mr. Song allegedly procured the loan by falsely claiming that his company
with the same name owned the Fuller Avenue real property, which served as
security for the \$1,295,000 loan. Velocity subsequently recorded a Deed of Trust
(DOT), which Plaintiff alleges is void.

Defendant,

US Bank National Association (“USB”) (transferee of the Velocity note), filed a cross-complaint against Mr. Song, Angela Song, and Lioness Investment, Inc. for breach of contract, fraud, negligent misrepresentation, indemnity, and related claims.

The clerk entered default against Mr. Song in the Complaint and Cross-Complaint.

USB moves for an Order to Show Cause re Contempt for Mr. Song’s failure to appear for his deposition. USB personally served Mr. Song with the subpoena on May 1, 2026. Mr. Song threw the subpoena under his car and failed to appear at the deposition on May 21, 2026.

The motion was served on the deponent, who is precluded from filing an opposition given his default status. (Rios v. Singh (2021) 65 Cal.App.5th 871, 887 [“After a default, a defendant is ‘out of court’ and cannot take any further steps in the cause affecting the plaintiff’s right of action until the default is set aside in a proper proceeding.”].)

II.

LEGAL STANDARDS

After notice to the opposing party’s counsel, and if the court is satisfied with the sufficiency of the affidavit, the court “must sign an order to show cause re contempt in which the date and time for a hearing are set forth. (§ 1212; Arthur v. Superior Court (1965) 62 Cal.2d 404, 408, [“an order to show cause must be issued”]; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 1999) § 9:715, p. 9(II)—47.) The order to show cause acts as a summons to appear in court on a certain day and, as its name suggests, to show cause why a certain thing should not be done.” (Cedars-Sinai Imaging Medical Group v. Superior Court (2000) 83 Cal.App.4th 1281, 1286.)

Disobedience of any lawful judgment, order, or process of the court is punishable by contempt. (Code

Civ. Proc., § 1209 (a)(5).) The facts essential to a court's jurisdiction over contempt proceedings are "(1) the making of the order; (2) knowledge of the order; (3) ability of the respondent to render compliance, (4) willful disobedience of the order." (Van v. LanguageLine Solutions (2017) 8 Cal.App.5th 73, 81; Conn v. Superior Court (1987) 196 Cal.App.3d 774, 784.)

Moving

party must prove the existence of a "valid court order, the alleged contemner's knowledge of the order, and noncompliance. If the petitioner proves those elements beyond a reasonable doubt the violation is established. He or she need go no farther." (Moss v. Superior Court (Ortiz) (1998) 17 Cal.4th 396, 428.)

III. DISCUSSION

On February 20, 2026, the Court granted USB's motion to compel Mr. Song to appear for deposition. (M.O. 2.20.26.) USB submits the declaration of a private investigator who personally served Mr. Song with the amended deposition subpoena. (Barocio decl.) Mr. Barocio effected service at a Chick & Burger location where he observed a black Porsche. He verified that the vehicle was leased to Kevin Hee Song, who unlocked the restaurant and entered. (Barocio decl.) Mr. Barocio personally served Mr. Song when he returned to his vehicle. (Id.) Despite proper service, Mr. Song did not appear at his deposition and refused to comply with this Court's order. (Guilani decl., ¶ 6.)

USB is entitled to an award of sanctions consisting of attorney's fees and costs. (Cal. Code Civ. Procedure § 1218.) Counsel incurred filing fees, interpreter fees, no-show fees and costs for work undertaken by the private investigator to locate and serve Mr. Song. (Guilani decl., ¶¶ 8-9, 12.) The Court awards sanctions of \$16,519.25.

U.S.

Bank requests issuance of a bench warrant. Although its Notice of Motion identifies Code of Civil Procedure section 1212 as the statutory basis for the requested warrant, its memorandum also expressly invokes section 1993, arguing that a warrant may issue for "the failure of a witness to attend in response to a duly served subpoena." U.S. Bank therefore seeks a warrant both to compel Mr. Song's attendance at the contemplated contempt proceeding under section 1212

and based upon his failure to appear for deposition pursuant to the personally served subpoena under section 1993.

The Court declines to issue a warrant under section 1212 for the purpose of requiring Mr. Song's personal attendance at the Order to Show Cause hearing. Although section 1212 authorizes a warrant of attachment in an indirect contempt proceeding, an alleged contemnor summoned by an order to show cause may appear through counsel, and a bench warrant may not be used merely to compel his personal presence where an appearance through counsel is sufficient. (*Morelli v. Superior Court* (1968) 262 Cal.App.2d 262, 268–270; *Silvagni v. Superior Court* (1958) 157 Cal.App.2d 287, 291–292.)

The Court nevertheless concludes that a bench warrant is authorized under Code of Civil Procedure section 1993. U.S. Bank expressly raised section 1993 as an alternative statutory basis for the requested warrant. The evidence establishes that Mr. Song was personally served with the amended deposition subpoena requiring his appearance on May 21, 2026, and nevertheless failed to appear. (Barocio decl.; Guilani decl., ¶ 5.) Section 1993 authorizes issuance of a warrant upon proof that a witness failed to appear in response to a duly served subpoena. (*Silvagni*, supra, 157 Cal.App.2d at p. 290.) Accordingly, the bench warrant issues under section 1993 based upon Mr. Song's failure to appear pursuant to the duly served deposition subpoena, and not for the purpose of compelling his personal attendance at the Order to Show Cause hearing.

IV. CONCLUSION

Based on the foregoing, USB's motion is GRANTED. The Court (1) sets an order to show cause as to why Mr. Song should not be held in contempt of the Court's February 20 order, scheduled for December 2, 2026, (2) Mr. Song is ordered to comply with the Court's order and deposition subpoena and appear at a deposition set by USB (3) The Court issues a bench warrant for Mr. Song's arrest. Bail is set at \$15, 000. (4)The Court imposes sanctions in connection with the motion to compel, service attempts upon Kevin, and contempt proceedings in the amount of \$16,519.25 payable to USB and its counsel on or before the date of the OSC hearing.